MAMA MAFUYANA HOUSING CO-OPERATIVE
versus
NYASHA CHIKWINYA
and
MINISTER OF LANDS AND RURAL RESETTLEMENT
and
MINISTER OF LOCAL GOVERNMENT, PUBLIC
WORKS AND NATIONAL HOUSING

HIGH COURT OF ZIMBABWE
MANYANGADZE J
HARARE, 12 March, 26 March, 8 April, 2 September 2025 & 9 March 2026

Civil trial

TS Mujungwa, for the plaintiff
V Masaiti, for the 1st defendant
C Chitekuteku, for the 2nd defendant
T Dzvetero, for the 3rd defendant

MANYANGADZE J:

INTRODUCTION

The plaintiff issued summons against the defendants in which it seeks the following relief:

> "a) Plaintiff's claim as against Defendants is for an order declaring the offer given to the Plaintiff in respect of the remainder of the remainder of Glen forest of Borrowdale Estates, in Goromonzi District for Urban development by 3rd defendant is declared valid.
> b) The offer letter given to the 1st Defendant by the 2nd Defendant for Agricultural purposes is declared null and void.
> c) Eviction of the 1st Defendant from the remainder of Glen Forest Easates.
> d) Costs of suit on the legal practitioner - client scale."

FACTUAL BACKGROUND

The dispute between the parties is centred on a piece of land described as the remainder of Glen Forest of Borrowdale, Goromonzi District, measuring 150.27 hectares ("the land"). The land was gazetted for urban development in 2003. It was offered to the plaintiff for urban development purposes.

Following this offer, the Department of Physical Planning, under the third defendant, approved layout plans for residential stands.

In June 2003, the second defendant offered the same land to the first defendant, for agricultural purposes. The confusion led to protracted negotiations involving all the parties.

This culminated into an agreement that the first defendant be offered 84.027 hectares adjacent to the plaintiff. This meant that the first defendant had to release the land originally offered to the plaintiff for urban development. The first defendant did not do so. She retained possession of the land, in addition to the alternative compensatory land of 84.027 hectares.

In an unexpected turn of events, the third defendant ordered the plaintiff to vacate the land. The plaintiff alleges that the first defendant used her political position to influence officials of the third defendant to have it evicted from the land.

First defendant's plea

The first defendant avers that the land was offered to her as Subdivision 26 of Pilgrims Rest PTN G of Borrowdale Estate. The offer was made under the Government's land reform programme, in June 2003.

The plaintiff invaded 100 hectares of the land, leaving the first defendant with approximately 40 hectares. The first defendant was then offered 80 hectares as compensation. The 40 hectares that remained from the plaintiff's invasion, was withdrawn from the first defendant.

Second defendant's plea

The offer made to the first defendant was for resettlement purposes. There was, however, no proper description of the land in the offer letter.

The second defendant handed over the land to the third defendant for urban development, since the land was in an urban area. The second defendant subsequently cancelled the offer letter originally made to the first defendant.

Third defendant's plea

The land was offered to the plaintiff for urban development, in terms of a layout plan issued by the third defendant.

The third defendant indeed offered 84 hectares to the first defendant as compensation for land occupied by the plaintiff.

PLAINTIFF'S EVIDENCE

The plaintiff opened its case by leading evidence from Boniface Mutize, chairperson of the plaintiff. He was the sole witness for the plaintiff.

The witness was in the Executive Committee of the plaintiff from 2000. He became chairperson in 2015. He told the court that the plaintiff was allocated the land in question in 2007. The plaintiff was issued with a layout plan approved by the third defendant on 8 June

2007. The next step was to obtain a certificate of approval from the Rural District Council and allocate stands to its members.

The witness explained that fully subscribed members are given clearance certificates by the plaintiff. They are then transferred to the local Rural District Council, in this case the Goromonzi Rural District Council, to enable them to obtain title deeds.

The witness further explained that the land was acquired under section 3 of the Urban Development Act. This was for urban development, not for agricultural purposes. The second defendant handed over the land to the third defendant for urban development.

The witness went on to tell the court that the first defendant is claiming ownership of land allocated to the plaintiff. The first defendant was compensated with 84 hectares of land because she had been allocated land belonging to the plaintiff. The first defendant is insisting on the whole land i.e. the alternative 84 hectares plus the 40 hectares on plaintiff's land. The first defendant had an offer letter for agricultural land. This was withdrawn by the allocating authority. The first defendant unsuccessfully challenged the withdrawal in the courts. The plaintiff pointed out that the first defendant, as an individual, was given 84 hectares. On the other hand, the plaintiff, a housing co-operative with 100 plus members, is being made to share 100 hectares among its members.

The plaintiff's chairman further pointed out that the third defendant does not have power to allocate land that has been already allocated and subdivided. This amounts to double allocation. The chairman alleged that the first defendant, as a former Cabinet Minister, was bringing undue pressure on officials of the third defendant to allocate her the disputed land.

The witness maintained his testimony under cross-examination. He indicated that a subdivision permit and layout plan constitute a valid offer of the land to the plaintiff. He reiterated the averment that at the time of the disputed allocation, the first defendant occupied a powerful and influential position in Government, being a Cabinet Minister.

The witness buttressed his evidence by tendering the following exhibits:

Exhibit 1: Certificate of Plaintiff's registration as a Housing Co-operative Society

Exhibit 2: Housing Scheme Layout Plan

Exhibit 3: Letter of approval of housing scheme layout plan

Exhibit 4: Issuance of leases

Exhibit 5: Approved layout plan

Exhibit 6: Compensation Letter

Exhibit 7: Letter of confirmation of compensation to first defendant

Exhibit 8: Withdrawal letter of land allocated to first defendant for agricultural purposes

Exhibit 9: Finalisation letter from second defendant to first defendant on the handover of land for urban development

Exhibit 10: Letter of 11September 2019 offering first defendant 10 hectares of land

FIRST DEFENDANT'S EVIDENCE

The first defendant, NYASHA CHIKWINYA, was the sole witness for her case.

She introduced herself as the director of an entity called Pilgrim's Rest Properties, and a member of the Parliament of Zimbabwe.

The witness told the court that the plaintiff invaded her farm in 2003. The farm was allocated to her by the second defendant under the land reform programme. She proceeded to develop the land, and established some fishery and horticultural projects.

The witness said that after the plaintiff's invasion, she approached the third defendant. She referred the court to a letter dated 31 October 2003 written by the third defendant, who at the time was Ignatius Chombo, wherein the Minister assured her that her land, Subdivision 26 of Pilgrim's Rest, was hers and was not being acquired for housing purposes. A letter from the permanent secretary dated 9 August 2007 confirmed that position.

The witness acknowledged that the same land was issued to the plaintiff on 8 June 2007. She acknowledged that this was a conflictual arrangement emanating from the offices of the second and third defendants. She told the court that the third defendant decided that the plaintiff be given alternative land. This effectively meant that the plaintiff be evicted from the contested land. The plaintiff refused to vacate the land.

The witness indicated that it was the third defendant, not her, who should evict the plaintiff. The third defendant opted for a settlement. The plaintiff had invaded two thirds of the farm, leaving her with 40 hectares. She was compensated with 84 hectares. The witness

said she accepted the compensation because she already had 40 hectares. The effect was that she had 84 hectares, in addition to the said 40 hectares.

The second and third defendants agreed that the offer letter of 2003 be withdrawn, to pave way for housing development. It was agreed that she retains the 40 hectares. The offer letter was cancelled in 2016. The witness went on to tell the court that she entered into a memorandum of understanding ("MOU") with the third defendant, in terms of which a valuation of the 40 hectares would be done, and she would then pay for the intrinsic value of the land.

The witness explained that the land was not in the same category as that offered to co-operative societies. It was offered to her directly as compensation. There was nothing anomalous about its valuation. She indicated that she has since paid for the intrinsic value determined. The witness told the court that if the 40 hectares are taken away from her, she has nowhere else to go. It is her life upon retirement.

The witness also produced various exhibits from her bundle of documents. They are listed as Exhibit 11 to 19 on the record. These include the offer letter of 6 June 2003, the Minister's letter of 31 October 2003, and letters relating to the land offered in compensation.

Under cross-examination, the witness said she never sold any property to anyone from the contested 40 hectares. However, it was put to her that she had in fact been taken to court by some people to whom she had sold some stands, who obtained an order for refund. The witness was at pains to explain this, and ended up saying that it was not her, but her company, that had sold the stands.

The witness could not explain why she challenged the withdrawal of her offer letter, considering her evidence that this was agreed to pave way for housing development. The witness did not produce the permit for urban development she claimed she was given. Neither could she produce the MOU relating to valuation which she had also referred to. She explained that the MOU inexplicably disappeared from the offices of the third defendant. It was not clear whether the document had been signed by both parties. There was therefore no proof that the said MOU had been concluded.

The witness's averment that she learnt of the withdrawal of her offer letter when the instant proceedings were instituted is untenable when, as already indicated, it was an agreed position that the offer letter be withdrawn. The applicant's attention was drawn to the application in which she challenged the withdrawal of her offer letter, under Case No. HCH 1788/20. That application was dismissed on the basis of material non-disclosure, in that the first defendant had concealed from the court the crucial fact that she had been compensated for loss of the land allocated to the plaintiff.

SECOND AND THIRD DEFENDANTS' EVIDENCE

The second and third defendants did not call any witnesses. They simply adhered to the papers filed of record.

ANALYIS OF EVIDENCE

The evidence in this matter must be viewed against the issue that falls for determination. The record shows that the parties haggled over the issues to refer to trial. This is seen in the round conference minutes where they tried to hammer out the issues. Eventually, the issue was formulated in the joint pre-trial minute dated 20 March 2020 as follows:

> "Whether or not the 1st Defendant is entitled to remain in occupation of the 40 hectares on the Remainder of Glen Forest Estate."

In other words, the question is whether the plaintiff is entitled to the whole of the 150.27 hectares it claims was allocated to it by the third defendant for urban development. In resolving this issue, the credibility of the witnesses becomes a very material consideration. Each party had one witness. For the plaintiff, it was its chairman. For the first defendant, it was the first defendant herself. The second and third defendant elected to abide by the papers filed of record.

In the case of *Tapiwa Nalomwe v Nicholas van Hoogstraten* HH 444/18, ZHOU J was confronted with a similar scenario, where he had to decide on the credibility of the plaintiff against that of the defendant. The learned judge laid out the approach as follows, at p 3:

> "The standard of proof required in this case, being a civil matter, entails a comparative rather than a quantitative test. The onus in this case is on the plaintiff to prove his case on a balance of probabilities. The degree of proof is expressed in the following statement of LORD DENNING in the case of *Miller* v *Minister of Pension* [1947] 2 All ER 372 at 374:

> "It must carry a reasonable degree of probability but not so high as is required in a criminal case. If the evidence is such that the tribunal can say 'we think it more probable than not', the burden is discharged, but if the probabilities are equal it is not."

This test has stood the test of time, and has been consistently applied, see *Ocean Accident and Guarantee Corporation Ltd* v *Koch* 1963 (4) SA 147(A) at 157D; *Zimbabwe Electricity Supply Authority* v *Dera* 1998 (1) ZLR 500(S) at 503E-504D.

This is a case in which the versions of the plaintiff and the defendant are mutually destructive. The approach of the court in the face of such a scenario is as stated by SANDURA JA in *Matiza* v *Pswarayi* 1999 (1) ZLR 140(S) at 143A-C:

> "Commenting on mutually destructive stories, WESSELS JA (as he then was) had this to say in *National Employers Mutual General Insurance Asociation* v *Gany* 1931 AD 187 at 199:
>
> > 'Where there are two stories mutually destructive, before the *onus* is discharged, the court must be satisfied upon adequate grounds that the story of the litigant upon whom the *onus* rests is true and the other false. It is not enough to say that the story told by Clark is not satisfactory in every respect. It must be clear to the court of first instance that the version of the litigant upon which the *onus* rests is the true version, and that in this case absolute reliance can be placed upon the story as told by A Gany . . .'
>
> I entirely agree with the learned JUDGE OF APPEAL."
> (underlining added for emphasis).

The judge went on to find that the "Plaintiff's evidence is simple and supports the averments in his declaration."

In respect of the defendant, the judge found the evidence to be contradictory and therefore mendacious. He remarked, at pp 4-5:

> "The defendant presented himself as an evasive and in some instances deliberately mendacious witness. When he was asked if he knew the plaintiff his initial response was: "I don't know him." A moment later he said that he had met the plaintiff two or three times way back in 2008. When he was asked if he had entered into the agreement in terms of which the plaintiff would transfer shares to him in return for the immovable property his response was: "Absolutely no." When his attention was drawn to his affidavit in Case Number HC 14089/12 in which he stated that in 2008 he extended an offer to the plaintiff to purchase the property, the defendant sought to disown the contents of the affidavit. In his evidence in this court he denied ever attempting to sell the property to the plaintiff. He denied that he was at some point represented by a Mr Ndoro of Ziumbe & Mtambanengwe even in the face of an affidavit in Case No. HC 2560/09 in which he was represented by that attorney, and he states so in the affidavit. The defendant's statement that he received the proof of share transfers as agent of Zimcor Limited cannot be accepted. He conveniently endorsed on one of the documents that he was receiving on behalf of Zimcor Limited so that he would point to that endorsement as a ground to wriggle out of his contractual obligations.

> Defendant did not call any witness from that company to support his story. He inadvertently admitted that he is in the habit of not registering assets in his own name which would explain why he directed the plaintiff to transfer the shares into the mane of Zimcor Limited. The defendant made inconsistent statements about whether he had appointed Brian Machengo to be his agent. In one instance he disputed that fact before he admitted it with some qualification. This was so notwithstanding the availability of a handwritten document which he authored and signed appointing Brian Machengo to be his agent and the fact that when the plaintiff gave evidence on the appointment of Brian Machengo to be the defendant's agent he was never challenged. The defendant's demeanour, punctuated by evasiveness and the use of impertinent language whenever he was confronted with facts presented him as a witness who was seeking to mislead the court." (underlining added for emphasis)

In casu, as already indicated under summary of the plaintiff's evidence, the chairman gave clear, coherent, consistent testimony. The court found him to be a credible witness.
To the contrary, the defendant's testimony was marred with contradictions and inconsistency in crucial respects. When she told the court that the withdrawal of her offer letter by the second respondent was a position amicably reached by all parties involved, had she forgotten that she fought that withdrawal all the way to the Supreme Court, without success? In the High Court case where she sought a review of the decision to withdraw the offer letter, *Nyasha Chikwinya v Minister of Lands and Rural Resettlement & Ors* HH 545/23, she concealed from the court the fact that she had received compensation in the form of an alternative piece of land, being 84.027 hectares. The court took a very dim view of her credibility and made the following findings, at p12:

> "From the foregoing, it is clear that the land that the applicant was originally offered as agricultural land was transformed into urban land through a process that she was aware of. Her application for change of use was granted by the responsible authorities. The land was subsequently subdivided for residential and other purposes.
>
> It follows that in applying for the revocation of the process that led to the withdrawal of her offer letter issued in respect of farm land whose status was changed, the applicant is being duplicitous and dishonest. That land ceased to be agricultural land, and from a reading of the papers, the applicant was part of the process that led to the change of status. She benefited from the change of use. She cannot therefore seek to challenge the cancellation of her offer letter when she allegedly benefited from the change of use of the same land.
>
> The fact that the applicant conveniently avoided to disclose that she was allocated another piece of land as compensation for the land she apparently lost attests to the *malafides* with which this application was made."

Then there is the issue of the MOU she seemed to be placing reliance on as evidence of the offer of the 40 hectares to her by the third respondent. The document was never

produced in court. She claimed it mysteriously disappeared from the offices of the Department of Physical Planning. It is therefore not even clear whether it was signed. Added to this, there was no proof of payment she claimed she for the intrinsic value of the 40 hectares.

When confronted with evidence of stands that she sold, in respect of which the purchasers successfully sued for refund, she was evasive and clearly at pains to explain this. She ended up claiming it was her company, not her, which sold the stands in question. The sale of immovable property is certainly not a simple over- the- counter transaction that can be easily done behind her back. These are substantial transactions involving due diligence processes that are unlikely to escape the company director's attention.

Considering all these factors cumulatively, the first defendant cannot be regarded as a credible witness.

Ultimately, the first defendant's case is dealt a fatal blow by the position taken by the second and third defendants in this matter.

In its plea, the second defendant confirms that it cancelled the first defendant's offer letter and handed over the land to the third defendant for urban development.

The second defendant then goes on to state that "*Wherefore the second Defendant prays that the plaintiff's claim be upheld*." Thus, the second defendant unequivocally supports the plaintiff's claim.

The third defendant, in its amended plea dated 28 February 2025, confirms that it offered the plaintiff the whole 150.27 hectares. It further confirms that it offered the first defendant 84.027 hectares and an additional 10 hectares "*in full and final settlement of any claims which the first defendant had pursuant thereto.*"

The third defendant adhered to its plea in its closing submissions.

The second and third defendants are the responsible administrative authorities for the allocation of State land. One is responsible for the allocation of agricultural land, and the other is responsible for urban land. Their position in this matter is clear and unambiguous. The land in question was offered to the plaintiff for urban development. The first defendant was offered alternative land as compensation. She should confine herself to the boundaries of the land offered to her. That settles the matter. The administrative authorities, it appears, bent over backwards with a generous offer of alternative land of not only 84.027 hectares, but an additional 10 hectares. That leaves the first defendant with a total of 94.027 hectares. She still wants 40 hectares from the land offered to the plaintiff. This will increase her allocation to

134.027 hectares, and reduce the plaintiff's land to 110.027 hectares. That she should get that much as an individual, against a housing co-operative with over a hundred subscribing members, is mind-boggling.

The probabilities of this matter are heavily staked against the first defendant. There is no basis on which to prefer her version to that of the plaintiff. The facts established overwhelmingly support the plaintiff's claim. It is noted that the plaintiff seeks costs on the higher scale of legal practitioner and client. It is the court's considered view that the case does not fall into the exceptional category warranting punitive costs. Even in HCH 1788/20, where the judge made adverse findings on the first defendant's credibility, costs were on the ordinary scale. The first defendant has lost in what was a vehemently contested claim. Such is the nature of litigation. The court finds no compelling reasons for a departure from ordinary costs.

In the result, it is ordered that:

1. The offer given to the Plaintiff by the 3rd Defendant in respect of The Remainder of Glen Forest of Borrowdale Estate, Goromonzi District, measuring 150.27 hectares, for urban development, be and is hereby declared valid.
2. The offer letter given to the 1st Defendant by the 2nd Defendant in respect of the land specified in paragraph (1) for agricultural purposes be and is hereby declared null and void.
3. The 1st Defendant and all those occupying the land specified in paragraph (1) through her vacate the said land within 7 (seven) days of this order, failing which the Sheriff of the High Court of Zimbabwe, be and is hereby authorised to evict them from the said land.
4. The 1st Defendant shall bear the Plaintiff's costs.

MANYANGADZE J……

Tavenhave & Machingauta, plaintiff's legal practitioners
Rubaya Chatambudza Legal Practitioners, 1st defendant's legal practitioners
Civil Division, Attorney General's Office, 2nd defendant's legal practitioners
Antonio & Dzvetero, 3rd defendant's legal practitioners